

November 22, 2006



U.S. Department
of Transportation

400 Seventh Street, S.W.
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 14257

EXPIRATION DATE: October 31, 2008

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Origin Energy American Samoa, Inc.
Pago Pago, American Samoa
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of certain non-DOT specification welded cylinders containing Division 2.1 materials. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in the development of this special permit only considered the hazards and risks associated with the transportation in commerce. The safety analyses did not consider the hazards and risks associated with consumer use or other uses not associated with transportation in commerce.
 - c. No party status will be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.304a(a)(1) in that the use of a non-DOT specification cylinder is not authorized except as specified herein.
5. BASIS: This special permit is based on the application of Origin Energy American Samoa, Inc. dated September 28, 2005 and additional information dated September 27 and October

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11, 2006 submitted in accordance with § 107.105 and the public proceeding thereon.

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Petroleum gases, liquefied or Liquefied petroleum gas	2.1	UN1075	N/A
Butane	2.1	UN1011	N/A

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Packaging prescribed are non-DOT specification welded cylinders manufactured in accordance with Australian Standard AS 2489-1998 by SMPC Plc. The cylinders have water capacities ranging from 10 to 100 pound (lbs) and are as shown on SMPC Plc. drawings contained in the Origin Energy American Samoa, Inc. application dated September 28, 2005 on file with the Office of Hazardous Materials Special Permits and Approvals (OHMSPA). Additionally, each cylinder must be equipped with a pressure relief device system described in § 173.301(f).

b. TESTING -

- (1) Each cylinder authorized under this special permit must be visually inspection for conditions which could cause failure of the cylinder prior to each refilling.
- (2) Each cylinder must be requalified at least once every five years in accordance with the requirements of §§ 180.205 and 180.209 as specified for a DOT Specification DOT-4BW cylinder.

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c. OPERATIONAL CONTROLS -

(1) No new construction is authorized. Any cylinder placed in service after the issuance of this special permit must be in conformance with a DOT specification for cylinders authorized for liquefied petroleum gas or butane.

(2) Cylinders which do not pass either the visual inspection or periodic requalification tests proscribed in Section 7.b must be condemned and are no longer authorized for the transportation of hazardous materials.

(3) Transportation by motor vehicle must be by private or contract carrier. When transported by cargo vessel, cylinders must be properly blocked and braced in a freight container. Transportation by cargo vessel is limited to government vessels.

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modifications or changes are made to the package or its contents and it is reoffered for transportation in conformance with this special permit and the HMR.

b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

c. The cylinders described in this special permit are authorized only for normal transportation as an article of commerce i.e., the movement of hazardous materials packages from consignor to consignee.

d. In addition to the required specification marking, each cylinder must be plainly and durably marked "DOT-SP 14257" in accordance with § 172.301(c).

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle and cargo vessel.

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10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each cargo vessel or motor vehicle used to transport packages covered by this special permit.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
 - o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)—"The Hazardous Materials Safety and Security Reauthorization Act of 2005" (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of

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this special permit must notify the Associate Administrator for Hazardous Materials Safety -- OHMSPA, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



Robert A. McGuire
Associate Administrator
For Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, Department of Transportation, Washington, D.C. 20590. Attention: PHH-31.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: MMTTOUGHIRY